

PETITION FOR A CERTIFICATE OF RESTORATION OF OPPORTUNITY UNDER RCW 9.97.020

SUPERIOR COURT OF WASHINGTON

COUNTY OF

(A QUALIFIED COUNTY UNDER RCW 9.97.010(2). This packet routes to the county of your conviction or adjudication, whose superior court may not decline to consider the application; the county where you live is also qualified but may decline. The filing-instructions page explains the choice.)

In re the Application of Maria-Alejandra O'Shaughnessy-Whitfield for a Certificate of Restoration of Opportunity

No. (the clerk assigns it at filing; this is filed as a civil action under RCW 9.97.020(7))

PETITION FOR A CERTIFICATE OF RESTORATION OF OPPORTUNITY UNDER RCW 9.97.020

1. The applicant, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this Court, as a qualified court under RCW 9.97.010(2), for a certificate of restoration of opportunity under RCW 9.97.020.

2. The applicant states, from the court records and the applicant's own Washington State Patrol criminal history record:

Any other name the case was filed under:

.....

The conviction this application concerns, and the exact RCW or municipal ordinance it was under, worded as the court record words it:

.....

.....

The court that imposed the sentence (district, municipal or superior, and its county or city):

.....

Cause number:

.....

Sentencing date; date of release from any total or partial confinement; and date any supervision or probation ended (from the sentencing court's docket):

.....

.....

3. Every conviction on the applicant's record, with the offence, its class, the court and the date (from the applicant's own criminal history record; continue on an attached sheet if needed):

.....

.....

.....

4. The point on the RCW 9.97.010(1)(a) scale that applies to the applicant, and the date it is computed from (one year from sentencing for a misdemeanour or gross misdemeanour noncustodial sentence; eighteen months from release from confinement on such an offence; two years from sentencing or release for a class B or C felony; five years from sentencing or release for a violent offence as defined in RCW 9.94A.030):

.....

5. The applicant's legal financial obligations are (state which, from the clerk's or collections agency's current figures): paid in full; or subject to a payment plan with which the applicant is fully compliant; or out of compliance with a payment plan but with good cause established with the court:

.....

6. The applicant states, after reading the applicant's own complete criminal history record, that none of the RCW 9.97.010(1)(c) bars applies - no conviction, ever, of a class A felony or an attempt, solicitation or conspiracy to commit one; no sex offence as defined in RCW 9.94A.030; no crime including sexual motivation under RCW 9.94A.835, RCW 13.40.135 or RCW 9.94A.535(3)(f); and no extortion in the first degree (this statement rests on your whole history and these lines are yours to complete after reading your record; write it in your own hand):

.....

.....

7. The applicant asks the Court to issue a certificate of restoration of opportunity, and notes that RCW 9.97.020(2)(a) leaves it to the Court's discretion whether the certificate applies to all of the applicant's past criminal history or only to the convictions or adjudications in the jurisdiction of this Court.

8. Notice under RCW 9.97.020(6) is being given to each prosecuting attorney the notice page of this packet names, and proof of service is filed with this petition.

DATE SIGNATURE OF APPLICANT

(The applicant signs and dates this petition personally. Nothing on this page is signed or dated for the applicant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

DATE OF BIRTH: 1968-12-31

MAILING ADDRESS: 11884 Snoqualmie River Crossing Boulevard Southeast, Apartment 14B,
Spokane, Washington 99206-2214

TELEPHONE: (509) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:WA:wa_crop_certificate_of_restoration

PROPOSED ORDER AND CERTIFICATE OF RESTORATION OF OPPORTUNITY

This proposed order and certificate is prepared UNSIGNED AND UNDATED for the judge. Nothing on its signature or date lines is written by the applicant or by this packet.

SUPERIOR COURT OF WASHINGTON
COUNTY OF

In re the Application of Maria-Alejandra O'Shaughnessy-Whitfield for a Certificate of Restoration of Opportunity

No.

ORDER AND CERTIFICATE OF RESTORATION OF OPPORTUNITY

The application of the above-named applicant having been considered under RCW 9.97.020, with the notice RCW 9.97.020(6) requires and the prosecuting attorney's report of the applicant's criminal history, and the Court finding the applicant a qualified applicant under RCW 9.97.010(1),

IT IS ORDERED that a certificate of restoration of opportunity is ISSUED to the applicant under RCW 9.97.020.

The Court exercises its discretion under RCW 9.97.020(2)(a) as follows (the Court states whether the certificate applies to all past criminal history or only to the convictions or adjudications in the jurisdiction of this Court):

.....

Under RCW 9.97.020(10), the clerk of this Court will transmit the certificate to the Washington State Patrol identification section.

DATED this day of,

JUDGE

(The date, the signature and the scope election above are the Court's own.)

Route: obligation:track-only:WA:wa_crop_certificate_of_restoration

NOTICE OF FILING TO EACH PROSECUTING ATTORNEY, WITH PROOF OF SERVICE

RCW 9.97.020(6) requires the applicant to notify the prosecuting attorney in the county where the certificate is sought, and also the prosecuting attorney of any other jurisdiction that sentenced the applicant in the FIVE YEARS preceding the application. The prosecutor of the county of application then supplies the court with a report of the applicant's criminal history. The recorded practice is that the notices go to the clerk with the petition, with proof of service.

NOTICE OF FILING

To: the Prosecuting Attorney of County (the county where the certificate is sought)
And to the prosecuting attorney of each other jurisdiction that sentenced the applicant in the five years preceding this application (list each below; write NONE if none):

.....
.....

Please take notice that Maria-Alejandra O'Shaughnessy-Whitfield is filing a petition for a certificate of restoration of opportunity under RCW 9.97.020 in the superior court named in the petition. Under RCW 9.97.020(6), the prosecuting attorney of the county of application supplies the court with a report of the applicant's criminal history.

PROOF OF SERVICE

I state that I served the notice above on each prosecuting attorney listed, in the manner and on the date stated below (complete when the notices actually go out; a date or manner written before then would be false):

Manner of service

DATE OF SERVICE SIGNATURE

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-only:WA:wa_crop_certificate_of_restoration

RECORDS CHECKLIST

For: Maria-Alejandra O'Shaughnessy-Whitfield

Three records are needed before the petition can be completed. Each is listed with the body that supplies it. This packet does not obtain, inspect or review any of them; you obtain each yourself.

ONE. YOUR WASHINGTON STATE PATROL CRIMINAL HISTORY RECORD.

The WATCH name and date-of-birth check online gives conviction information immediately and is enough to start. The non-conviction record is a different and slower product needing a fingerprint card, and an in-person record review is also available. The recorded guidance is to read the WSP fee table live rather than relying on a stored figure, so this packet quotes no amount. Your conviction history list, and the paragraph 6 statement that none of the RCW 9.97.010(1)(c) bars applies, are completed from this record.

TWO. THE SENTENCING COURT'S DOCKET.

Ask the clerk of the district, municipal or superior court that sentenced you. It supplies the cause number, the exact RCW, the offence class, the sentencing date, and the supervision and release dates. Every waiting period on the RCW 9.97.010(1)(a) scale runs from one of those dates, and none of them is reliably on the quick online check.

THREE. YOUR LEGAL FINANCIAL OBLIGATION BALANCE AND PAYMENT PLAN STATUS.

Ask the clerk of the sentencing court, or the collections agency the court used, for the current balance and plan status. RCW 9.97.010(1)(b) makes compliance an eligibility element, satisfied in one of three ways: paid in full; fully compliant with a payment plan; or out of compliance but with good cause established with the court.

Route: obligation:track-only:WA:wa_crop_certificate_of_restoration

FILING INSTRUCTIONS

This packet is prepared for applying for a Washington certificate of restoration of opportunity under RCW 9.97.020.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT A CERTIFICATE DOES. Where you hold a certificate and meet all other statutory and regulatory requirements, no state, county or municipal department, board, officer or agency assessing qualifications for a licence, certificate of authority, qualification to engage in a profession or business, or admission to a qualifying examination may disqualify you SOLELY on the basis of criminal history, except as required by federal law or as exempted. It operates on the collateral consequences of conviction; it is not vacation and does not clear the record.

WHAT IT DOES NOT REACH - READ BEFORE FILING. The exemptions are extensive: criminal justice agencies (as defined in RCW 10.97.030) and the Washington State Bar Association outright; and the licensing, certification or qualification of accountants, bail bond agents, escrow agents, nursing home administrators, nursing, physicians and physician assistants, private investigators, receivers, teachers, notaries public, real estate brokers and salespersons, security guards, and the vulnerable adult care providers the section carves out. The Department of Social and Health Services and its contracted providers and licensees keep sole discretion whether to consider a certificate for positions caring for or having unsupervised access to vulnerable adults or children. If the licence or job you are trying to get is on that list, a certificate cannot reach it, and filing will not solve your problem - stop and get advice instead. A certificate also does not restore firearm rights or eligibility for a firearm dealer licence under RCW 9.41.110, and does not require the removal of any protection order.

WHO IS ELIGIBLE. The RCW 9.97.010(1)(a) scale is graduated: one year from sentencing for a misdemeanour or gross misdemeanour noncustodial sentence; eighteen months from release from confinement on such an offence; two years from sentencing or release for a class B or C felony; five years from sentencing or release for a violent offence as defined in RCW 9.94A.030. You must also be in compliance with or have completed all sentencing requirements - legal financial obligations paid in full, or a payment plan you are fully compliant with, or good cause established with the court for non-compliance. And you must never have been convicted of a class A felony (or an attempt, solicitation or conspiracy to commit one), a sex offence, a sexually motivated crime, or extortion in the first degree.

WHERE TO FILE. Only a superior court is a qualified court, and RCW 9.97.010(2) closes the set at two: the superior court of the county where you live, and the superior court of the county of your conviction or adjudication (even where a district or municipal court convicted you, the qualified court is that county's superior court). This packet routes to the COUNTY OF CONVICTION, because RCW 9.97.020(8) forbids that court to decline to consider the application. The residence county may be nearer and you may use it, but it MAY decline; if it does, it must dismiss without prejudice and state the reason on the order, and your remedy is to refile in the other qualified court - there is no transfer procedure, so no court will move the case for you.

WHAT YOU DO, IN ORDER.

STEP ONE. Gather the three records on the checklist page.

STEP TWO. Check the exemption list above against the licence or job you actually want.

STEP THREE. Fill in every dotted blank on the petition from the records, including the paragraph 6 statement, which you complete after reading your own criminal history.

STEP FOUR. Fill in the notice page: the prosecuting attorney of the county where you file, and every other jurisdiction that sentenced you in the last five years, or NONE.

STEP FIVE. Sign and date the petition yourself. Leave the proposed order unsigned and undated - it is prepared for the judge.

STEP SIX. File the petition, the proposed order and certificate, and the notices with proof of service, at the superior court clerk's office, as a civil action under RCW 9.97.020(7). A filing fee applies; its amount is not stated by any record this packet is built from, so ask the clerk. If you cannot afford it, a GR 34 motion for a fee waiver is the recorded route. Some county superior courts require additional accompanying documents under local rules - ask the clerk what the local rules require.

STEP SEVEN. Serve the notices as the proof-of-service page directs, completing that page only when the notices actually go out.

STEP EIGHT. The court decides without a hearing on the application and the prosecutor's pleadings unless it determines a hearing is necessary. If granted, the clerk transmits the certificate to the Washington State Patrol identification section.

ONE DISCRETION TO UNDERSTAND BEFORE CHOOSING YOUR COUNTY. RCW 9.97.020(2)(a) leaves it to the issuing court whether the certificate covers ALL your past criminal history or ONLY the convictions in that court's own jurisdiction. Filing in the county of conviction guarantees consideration, but the certificate may be limited to that court's convictions. If you have convictions in more than one county, which county to file in is a judgment about what the certificate will be worth - get advice before choosing.

WHEN TO STOP AND GET HELP INSTEAD OF FILING.

- any class A felony, sex offence, sexually motivated offence or first degree extortion conviction anywhere on your record;
- the target licence or profession is on the exemption list - a certificate will not reach it;
- your real goal is firearm rights, or removal of a protection order - the section expressly does neither;
- your legal financial obligations are behind and no good cause has been established with the court;
- a residence-county court declines - read the stated reason with help before refiling;
- convictions in more than one county.

WHAT THIS PACKET IS NOT. The Administrative Office of the Courts publishes a statewide CRO pattern set (petition, notice, proof of service, order and certificate, with instructions and a brochure, and translations). The pages in this packet are composed pleadings conforming to that set's recorded content; they are not the AOC forms themselves, and whether those forms are mandatory, pattern or optional is an open question this packet does not decide - the clerk can tell you whether the court expects the AOC forms. This packet is not legal advice, it is not filed for you, and it does not decide whether the court will issue the certificate or how broadly it will reach.

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